

26STCV10294 26STCV10294

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-13

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Case Number: 26STCV10294 Hearing Date: July 13, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: July 13, 2026 TRIAL DATE: NOT SET

CASE: Lynn L. Braun v. Aurora Cordero, et al.

CASE

NO.: 26STCV10294

DEMURRER TO COMPLAINT WITH

MOTION TO STRIKE

MOVING

PARTY: Defendant Jose Ibarra

RESPONDING

PARTY(S): No

response on eCourt as of 7/9/26.

TENTATIVE RULING:

Ibarra's

Demurrer is OVERRULED.

The

hearing on Ibarra's Motion to Strike is continued to October 12, 2026 at 9 a.m.

Moving

party to give notice.

BACKGROUND:

This

is a payroll fraud action.

DISCUSSION:

Demurrer to Complaint

Ibarra

demurs to the Complaint in its entirety as barred by the statute of limitations. Ibarra asserts that this action is premised on conduct which occurred in 2018. This assertion is extrinsic to the Complaint. Ibarra does not request judicial notice of any materials on which to base his argument. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) Moreover, Ibarra does not include a formal statement of grounds for his demurrer, nor does he specify a statutory provision under which this demurrer is brought. (Code Civ. Proc. § 430.20.)

Ibarra

has not presented a sound basis for the Demurrer. He has not complied with the relevant procedural requirements. Accordingly, the Demurrer to the Complaint is
OVERRULED.

Continuing

the Hearing Date on the Motion to Strike

On July 9, 2026, the Court received a communication from Plaintiff, indicating that she had not previously received proper notice of the demurrer or motion to strike, and further indicating that Plaintiff was unavailable on July 13, 2026.

The

Court has already independently reviewed the demurrer and determined that it should be overruled, for the reasons given above. The Court is therefore comfortable overruling the demurrer regardless of the participation of Plaintiff (the non-moving party) in the July 13, 2026 hearing.

The motion to strike, however, is less obviously unsuccessful. To give Plaintiff a fair opportunity to argue against the motion to strike, the Court continues the hearing date on the motion to strike only to October 12, 2026, at 8:30 am.

The

Court notes that the Plaintiff filed an improper (because lack of compliance with the Rules of Court) ex parte application to continue the July 13, 2026 hearing date. That ex parte application is advanced to this date and denied. Nonetheless, on the Court's own motion, for the reasons given above, the Court overrules the demurrer and continues the hearing on the motion to strike to October 12, 2026 at 9 a.m.

CONCLUSION:

Ibarra's
Demurrer is OVERRULED.

The

hearing on Ibarra's Motion to Strike is continued to October 12, 2026 at 9 a.m.

Moving
party to give notice.

IT IS
SO ORDERED.

Dated: July 13, 2026 _____

Nicholas
F. Daum

Judge
of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.